

	Custom Beverage, LLC 2026-01574958	court to deny the petition and vacate the Revised Final Award issued by arbitrator Hon. Richard Aronson (Ret.) on May 18, 2026. As more fully set forth below, the petition to confirm the arbitration award is GRANTED, and the request to vacate the award made in the opposition is DENIED. Any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) A petition to confirm an arbitration award must "(a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc., § 1285.4.) Pursuant to Code of Civil Procedure section 1286, if a petition to confirm an arbitration award is duly served and filed, "the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." Here, Petitioner duly served and filed its petition to confirm the arbitration award, and that petition complies with Code of Civil Procedure section 1285.4 by attaching a copy of the parties' arbitration agreement, setting forth the name of the arbitrator—Hon. Richard Aronson (Ret.)—and attaching a copy of the arbitration decision and final award. Accordingly, the award must be confirmed unless Respondent's request to vacate establishes a ground for vacating the award. Absent proof of a statutory ground for vacating or correcting an award, arbitration awards are immune from judicial review in proceedings to challenge or enforce the award. (<i>Moncharsh v. Heily & Blase</i> (1992) 3 Cal.4th 1, 12-13 (<i>Moncharsh</i>); <i>Zazueta v. County of San Benito</i> (1995) 38 Cal.App.4th 106, 110.) As a result, the merits of the controversy generally are not reviewable by the court when a petition to confirm or vacate is presented. (<i>Moncharsh, supra</i>, 3 Cal.4th at p. 11.) Thus, courts will not review the sufficiency of the evidence to support the award. (<i>Morris v. Zuckerman</i> (1968) 69 Cal.2d 686, 691 (<i>Morris</i>).) Nor will courts pass upon the validity of the arbitrator's reasoning. The court simply may not substitute its judgment for that of the arbitrator. (<i>Morris, supra</i>, 69 Cal.2d at p. 691; <i>Department of Pub. Health of City &</i>
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	<i>County of San Francisco v. Service Employees Int'l Union, Local 790</i> (1989) 215 Cal.App.3d 429, 433, fn. 4.) Generally, errors of law committed by the arbitrator, no matter how gross, are not grounds for challenging the arbitrator's award under California law. (<i>Moncharsh, supra</i>, 3 Cal.4th at p. 11; <i>Richey v. AutoNation, Inc.</i> (2015) 60 Cal.4th 909, 916.) Here, Respondent argues the court should vacate the award because the Arbitrator violated Respondent's due process rights by (1) wrongly relying on a post-evidence hearsay statement in a revised, unsworn expert report Respondent never got to cross-examine; (2) allowing the arbitrator's expert to improperly communicated directly with opposing counsel during the drafting period and then issued a report suggesting Respondent pay Petitioner six times the amount Petitioner was seeking; and (3) impermissibly delegating his role as trier of fact to the accountant who the Arbitrator treated as a percipient witness but was never cross-examined. (Opp. at p. 3.) Respondent fails to identify or explain how any of these contentions satisfy a single statutory ground for vacating an arbitration award. Rather, Respondent simply states the foregoing three items are "due process arguments that CCP §1286.2(a)(1), (a)(2), and (a)(3) were written to address. Respondent does not state what these three statutory grounds for vacating an arbitration award are, let alone explain how or why these statutory grounds apply in this case. Code of Civil Procedure section 1286.2, subdivision (a)(1) allows a court to vacate an arbitration award when it is shown the award was procured by corruption, fraud or other undue means. Section 1286.2, subdivision (a)(2) allows a court to vacate an arbitration award when it is shown there was corruption in any of the arbitrators. Finally, section 1286.1, subdivision (a)(3) allows a court to vacate an arbitration award when it is shown the rights of the party were substantially prejudiced by misconduct of a neutral arbitrator. Respondent does not cite any authority applying any of these three statutory grounds nor does Respondent identify or apply the legal standards applicable to any of these three grounds. Moreover, Respondent makes countless factual assertions and arguments in the opposition, but largely fails to cite to any evidence to support the assertions. For example, Respondent asserts the Arbitrator granted Petitioner's request for an accounting over Respondent's
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		objection without any citation to support that assertion. Similarly, Respondent argues the appointed accountant had been trying to court Petitioner’s business for several years, but neither Petitioner nor the accountant disclosed that to Respondent and the Arbitrator decided it was not big deal. To support this assertion, Respondent cites to the accountant’s entire report without any pinpoint cite and cites to nothing by the Arbitrator. Respondent goes on to make numerous representations about errors the accountant made and statements both the accountant and Arbitrator made in their respective report and award. Respondent, however, fails to cite any evidence to show the inaccuracies and other issues. It is not sufficient to Respondent to make conclusory accusations; Respondent must cite the court to evidence to establish the accusations are true. Respondent has not done so and therefore failed to meet its burden on its request to vacate the arbitration award. Moreover, Respondent fails to disclose or acknowledge many of the points Petitioner has made in the reply, including that Respondent agreed to, shaped, and benefitted from the accounting procedure it now attacks. In short, Respondent’s opposition is bereft of any authority to support or citations to evidence supporting its challenges to the award. Respondent attaches hundreds of pages to its counsel’s declaration, but the minimal citations to those pages is of no assistance. Respondent has failed to show its opposition is anything more than a challenge to the sufficiency of the evidence and reasoning of the Arbitrator which cannot be reviewed on a petition to confirm or vacate an arbitration award. Accordingly, the petition to confirm the award is GRANTED, and the request to vacate the award included in the opposition is DENIED. Petitioner may submit a proposed judgment, and any requests for costs or attorney fees will need to be made pursuant to an appropriate post-judgment procedure, such as potentially a memorandum of costs or attorney fee motion, because no evidence is submitted at this time to support an award of either fees or costs. Petitioner’s counsel is ordered to give notice of this ruling.
6.	<i>In Re:</i> <i>Crestpoint</i> <i>Capital, LLC</i> 2026-01559773	Before the court is the continued hearing on the petition of petitioner Crestpoint Capital LLC (Petitioner) for court approval of proposed transfer of certain periodic payments real party in interest and payee Samantha Mena (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the petition is DENIED at the